

CLINICAL STAFFING AGREEMENT

This CLINICAL STAFFING AGREEMENT ("**Agreement**") is made and entered into as of April 28, 2025 (the "**Effective Date**"), by and between Montefiore Medical Center ("**Montefiore**"), 111 East 210th Street, Bronx, New York 10467 and Fastaff, LLC ("**Agency**") having an office at 5700 S. Quebec Street, Suite 300, Greenwood Village, CO 80111.

WHEREAS, Agency is a licensed temporary staffing agency in the business of providing supplemental staffing of registered nurses and allied health professionals to medical care providers such as Montefiore; and

WHEREAS, Montefiore is a health care provider in need of supplemental staffing of registered nurses and allied health professionals; and

WHEREAS, Montefiore desires Agency to provide on a reasonable commercial basis, when requested and on a non-exclusive basis, the highest quality supplemental staffing available.

NOW THEREFORE, for and in consideration of the recitals above and the mutual covenants and conditions contained herein, Montefiore and Agency agree as follows:

1. Staffing Services. Montefiore hereby engages Agency to perform staff augmentation services as needed, as described in in this Agreement (collectively, the "**Services**"), and Agency agrees to perform the Services upon the terms and conditions in this Agreement.
 - 1.1 Services. Montefiore may request temporary supplemental personnel (the "**Contract Personnel**") from time to time to perform certain Services on an as needed basis. Montefiore will notify Agency of the type of Services required and estimated duration of such Services, and Agency will use its best efforts to provide the appropriate Contract Personnel to perform such Services in full compliance with the terms of this Agreement. Agency shall diligently and competently perform the Services, consistent with industry standards. Agency shall provide the Contract Personnel at such times and places as mutually agreed upon by Montefiore and Agency. Agency will present a candidate to Montefiore and Montefiore will provide approval or rejection of the candidate. Upon receipt of approval from Montefiore, Agency will proceed with assigning such candidate to Montefiore for the agreed upon assignment (the "**Assignment**"). Agency agrees to use and follow Montefiore's communication system and process for assignment requests, responses, approvals, and other communications, including through Montefiore's electronic vendor communication system, as instructed. Montefiore may, at any time, modify a Contract Personnel's Assignment to a different unit within the same location or to a new location within five miles of the original location, provided such reassignment may only occur if the duties are reasonably consistent with the Contract Personnel's license, experience and competency. If any Contract Personnel leaves prior to completing an Assignment Agency shall use reasonable commercial efforts to promptly replace such Contract Personnel with Contract Personnel reasonably acceptable to Montefiore but shall not be held liable for failure to do so.
 - 1.2 Non-exclusive. This Agreement does not constitute an exclusive engagement of Agency services by Montefiore or a promise by Montefiore to meet any or all of its supplemental staffing needs through Agency. Agency is not prohibited from assigning Contract Personnel to other entities, and Montefiore is not obligated to use Agency exclusively or

at all. To the contrary, Montefiore is free to use or not use Agency as it deems fit in its sole discretion. Except as set forth below in Section 1.10 (e) "Guaranteed Minimum Workweek" Montefiore shall not be required to pay for, and Agency shall not be required to provide Contract Personnel to perform, a minimum number of hours of Services during the Term.

- 1.3 Contract Personnel. Agency will furnish Contract Personnel who are appropriately trained, licensed and qualified to perform the Services. Agency will comply with all federal laws, rules, regulations and procedures regarding legal status to work and reside in the U.S. including completion of required immigration and Naturalization forms upon hire. In the event Agency is unable to provide Montefiore with direct employees of Agency, Agency will subcontract with another agency to fill the open position (each such subcontracted agency, a "Subcontractor"). Contract Personnel will be employees of Agency or employees of Agency's Subcontractor(s) and in no event will any Contract Personnel be an individual contractor. Agency is solely responsible for: (i) the negligent acts and omissions of all Contract Personnel; (ii) the employment of Contract Personnel and/or engagement of Subcontractors that employ any Contract Personnel; (iii) screening and background checks of all Contract Personnel; (iv) payment of salaries, wages, bonuses, benefits (including health insurance, retirement, and other similar benefits, if any) and other compensation of all Contract Personnel; (v) all expenses incurred by Agency and its Contract Personnel; and (vi) the payments described in Section 3.2. All Subcontractors and Contract Personnel who are employees of Subcontractors will be held to the same standards, terms, rates, and provisions as set forth in this Agreement and are subject to Montefiore's prior approval, which approval will not be unreasonably withheld or delayed. All Contract Personnel must sign-on to Montefiore's time-keeping system, E-Z Time, at the beginning and end of each shift.
- 1.4 Subcontractor Management. Agency shall be responsible for and perform the following: (i) the execution by the Subcontractor of an appropriate agreement with Agency; (ii) scheduling and ordering of all Contract Personnel provided through Subcontractors; (iii) coordinating the assignments of all Contract Personnel provided through Subcontractors; (iv) maintaining Contract Personnel documentation including appropriate degrees, licenses, and records; and (v) consolidating all invoices from Subcontractors within a single weekly bill provided to Montefiore. Agency shall require that the Subcontractor seek payment only from Agency and not Montefiore. In addition, Agency shall be responsible for requiring compliance by all Subcontractors with all applicable laws, rules and regulations and Joint Commission standards as applicable to the type of staff provided. At the request of Montefiore or at the recommendation of Agency with the written approval of Montefiore, new Subcontractors may be added at any time during the life of this Agreement. All potential new Subcontractors will be screened by Agency to determine if they have all customary industry systems and practices in place to be able to meet all legal, screening, compliance and insurance requirements of the Agreement and Subcontractor Agreement.
- 1.5 Contract Personnel Changes. At all times while performing Services at Montefiore, each Contract Personnel must be duly licensed, certified and/or registered under the laws of the State of New York to perform the Services set forth in the Assignment or otherwise permitted to perform such Services under an applicable Executive Order of the Governor of the State of New York. If the Contract Personnel ceases to be appropriately licensed, certified, registered or permitted to perform the Services, the Assignment of such Contract Personnel shall immediately terminate at no cost or penalty to Montefiore. In addition, if

any Contract Personnel acts or fails to act in a way which endangers the life, safety or welfare of a patient or others at Montefiore, or disrupts operations at Montefiore, or provides services below Montefiore's standards of professional practice or behavior, then Montefiore shall notify the Agency and shall have the right to terminate such Contract Personnel's assignment, and Agency shall promptly remove such Contract Personnel and will use reasonable commercial efforts to replace him/her with an individual acceptable to Montefiore.

- 1.6 Agency Account Manager. Upon request of Montefiore, Agency will assign a specific representative who is an employee of Agency ("Account Manager"), to act as a liaison between Montefiore and Agency. Such Account Manager's duties may include but not be limited to: consulting with Montefiore departments and affiliates to establish staffing needs; receiving, filling and confirming staffing requests from all Montefiore sites; collecting and maintaining statistical data for all Contract Personnel; consolidating billing from all Subcontractors; accessing and providing reports specific to criteria as requested; performing Agency-related duties as they relate to the hiring and placement of Contract Personnel; and obtaining and coordinating all initial and on-going performance evaluations of the Contract Personnel. Montefiore may request such Account Manager be on-site at Montefiore for specified periods. Upon such request, the Account Manager will be located in office space designated by Montefiore and Montefiore shall supply all necessary office furniture and equipment necessary for the Account Manager to perform the designated duties, including, but not limited to, telephone, facsimile, computer and Internet access. All such office furniture and equipment shall be and remain property of Montefiore.
- 1.7 Screening and Background Checks. Agency shall, at its expense, carefully screen Contract Personnel to determine their qualifications and competence. The screening by Agency shall include, but not be limited to, obtaining pertinent information concerning all past employment, licensure, certifications, education, and professional skills, conducting background, reference, criminal record, and other checks as appropriate; checking against governmental "prohibited persons" lists; and fingerprinting and drug screens, for all Contract Personnel who are to be assigned to perform Services under this Agreement, and will not assign any Contract Personnel to perform any Services who has not been cleared of all such checks and screenings. All required screening requirements, including background checks, are delineated in Appendix A. Throughout the Initial Term and any Renewal Term (as defined in Section 10.1 below), Agency shall have a continuing obligation to inform Montefiore promptly upon learning of any information which might impact the ability of any Contract Personnel to continue to perform Services.
- 1.8 Compliance. Agency shall ensure that its Contract Personnel comply with all applicable federal, state and local laws, rules and regulations, accrediting body standards and Montefiore's policies and procedures while performing Services or otherwise onsite at Montefiore's facilities. Contract Personnel shall use reasonable commercial efforts to perform Services in accordance with the highest standards of their respective professions.
- 1.9 Locations. Agency may be requested to assign Contract Personnel under this Agreement to all the Montefiore Medical Center locations and facilities listed on Appendix C and as otherwise agreed upon in writing between the Parties. Montefiore agrees and warrants that it has the legal authority to enter into this Agreement on behalf of all such locations, and to the extent that any of such locations are entities that are legally distinct from Montefiore, Montefiore hereby represents and warrants that it controls and has the authority to bind and contract on behalf of such entities. As used in this Agreement, "control" means (a) direct

or indirect ownership of at least fifty percent (50%) of the voting power of the shares or other securities for election of directors (or other managing authority) of the controlled or commonly controlled entity; or (b) holding, directly or indirectly, the power to exercise more than fifty percent (50%) of the entity's voting rights.

1.10 File Turnaround Time. Within 72 hours of Agency presenting to Montefiore such Contract Personnel's Employee Profile, Montefiore shall use reasonable commercial efforts to notify Agency of Montefiore's decision to accept or decline a Contract Personnel.

1.11 Contract Personnel Schedules and Shift Guarantee

- (a) A "Work Week" shall begin at 7:00 a.m. on Sunday (hereinafter "Week").
- (b) A "Shift" is considered 11.5 hours per day unless otherwise agreed upon by the Parties in writing.
- (c) "On-Call" means time during which Contract Personnel is not present at Montefiore's location but remains available to work at the Montefiore's location if requested by Montefiore. For the avoidance of doubt, no Contract Personnel is On-Call unless Montefiore requests that the specified Contract Personnel provide On-Call services during that time. The hours designated as On-Call will not count towards the Guaranteed Minimum Hours (below). On-Call shall be hours in which designated Contract Personnel will be available to report to Montefiore for duty within one (1) hour of notification.
- (d) "Call-Back" means time during which Contract Personnel works if: (a) Contract Personnel is assigned to an On-Call shift, and (b) at Montefiore's request, Contract Personnel presents to the designated Montefiore to work for the remainder of the On-Call shift. For the avoidance of doubt, no time is Call-Back time until the Contract Personnel arrives at the Montefiore and presents to the appropriate department or unit to work the shift, at which point the On-Call shift ends and Call-Back begins. Once Call-Back begins, those hours worked under Call-Back time may be counted towards the Guaranteed Minimum Hours.
- (e) *Guaranteed Minimum Workweek*. Montefiore shall schedule sufficient Shifts each Week so all Contract Personnel embarking to Montefiore will be guaranteed the minimum hours per Week set forth in the Assignment Confirmation Form (as defined below), or more as agreed to in writing between Montefiore and Agency ("Guaranteed Minimum Hours"). If a Contract Personnel works less than the Guaranteed Minimum Hours in a Week due to a lack of available work, Montefiore shall pay Agency the corresponding Fee for the actual hours worked by the Contract Personnel and for each guaranteed hour not worked. For avoidance of doubt, Montefiore will always be charged no less than the Guaranteed Minimum Hours in a Week unless a Contract Personnel is not available to work due to illness, injury or the like. If the Contract Personnel volunteers for time off Montefiore will still be charged the Guaranteed Minimum Hours in a Week.
- (f) *Overtime*. Any overtime work requires Montefiore approval. Montefiore approval is needed for any extension or renewal of an Assignment.

1.12 Supervision / Professional Standards. Contract Personnel assigned to Montefiore shall be

supervised exclusively by Montefiore, which is solely responsible for determining the professional standards that apply to such Contract Personnel, overseeing their work, and periodically evaluating their clinical and non-clinical performance. Montefiore shall make reasonable commercial efforts to provide such evaluations to Agency upon Agency's request.

- 1.13 Non-Clinical Orientation and Compliance Record. Agency shall provide each Contract Personnel assigned to Montefiore with non-clinical orientation that meets the requirements and standards established by The Joint Commission on Accreditation of Healthcare Organizations ("TJC") and the United States Occupational Safety and Health Administration ("OSHA"). Agency shall provide to Montefiore each Contract Personnel's compliance record, which shall confirm such Contract Personnel's compliance with the following: National Patient Safety Goals, Cultural Diversity, Patient Rights, HIPAA, Infection Control, Ethics for Healthcare, and Montefiore's Orientation Manual, which shall be provided by Montefiore to Agency.
- 1.14 Orientation. Montefiore shall provide assigned Contract Personnel with professional clinical and non-clinical orientation. Such orientation time shall be deemed time worked by Contract Personnel and shall be billable to and paid by Montefiore at the same rate that otherwise applies to the assignment. The amount, type and duration of such orientation shall be determined by Montefiore at its discretion, with prior notice given to Agency, provided that at a minimum, before assigning any patient care duties to an assigned Contract Personnel, Montefiore shall provide such Contract Personnel with orientation concerning (i) Montefiore's policies and procedures, (ii) identification of the unit or department to which the Contract Personnel is assigned (including any department in or to which the Contract Personnel may float or be reassigned); (iii) the standards applicable to such unit or department; and (iv) information necessary to access any electronic or computerized devices.
- 1.15 Contract Personnel Cancellation
 - (a) *Cancellation Prior to Start Date.* If Montefiore cancels a Contract Personnel's assignment seventy-two (72) hours prior to the scheduled assignment start date, Montefiore shall pay Agency any non-recovered travel and lodging expenses incurred as a result of such cancellation(s).
 - (b) *Does Not Meet Contract Personnel Qualifications.* If Montefiore cancels a Contract Personnel's assignment after the Contract Personnel first reports to Montefiore to commence the first shift of an assignment and before the end of the Contract Personnel's second scheduled shift, and because Montefiore determines that the Contract Personnel does not possess the qualifications established for that assignment, then Montefiore shall have no financial obligation to Agency for the hours worked by the Contract Personnel, or for any travel, lodging, or other expenses incurred for such Contract Personnel.
 - (c) *Cancellation for Cause.* If Montefiore cancels a Contract Personnel's assignment at any time based on the Montefiore's determination that the Contract Personnel's performance is unsatisfactory, Montefiore shall pay Agency only for the time actually worked by such Contract Personnel and shall have no further financial obligation, including for travel, lodging, or other expenses incurred for such Contract Personnel. If Montefiore's dissatisfaction with a Contract Personnel's

performance concerns the Contract Personnel's clinical performance, Montefiore shall so inform Agency and shall provide Agency with information concerning such clinical performance issues, including but not limited to any available documentation concerning the Contract Personnel's clinical performance.

- (d) *Cancellation for Convenience.* If Montefiore cancels a Contract Personnel's assignment before the assignment end date for any reason other than the Contract Personnel's qualifications or performance, Montefiore shall pay Agency an amount equal to four (4) Shifts for each canceled Contract Personnel, in addition to the travel expenses incurred for each canceled Contract Personnel to return home from the canceled assignment. Alternatively, if Montefiore provides Agency with at least four (4) Shifts' advance notice that a Contract Personnel's assignment will be canceled before the assignment end date, and the Montefiore schedules and has the Contract Personnel work those four (4) Shifts, Montefiore shall pay only for the travel expenses incurred for such canceled Contract Personnel to return home from the canceled assignment.
 - (e) Under no circumstances shall Montefiore deny placement of a Contract Personnel based upon grounds prohibited by federal or state civil rights law, including but not limited to Title VII of the Civil Rights Act of 1964, as amended, the Americans with Disability Act of 1990, the Age Discrimination in Employment Act of 1967, the Equal Pay Act of 1963, Section 501 of the Vocational Rehabilitation Act of 1973, or which may be prohibited under Executive Order 11246, if Montefiore is considered a federal contractor, or under any other collateral State employment discrimination statute.
- 1.16 Incidents. Within 48 hours of Montefiore's first notice of any unexpected incidents, errors, or sentinel events involving the patient care or other services provided by a Contract Personnel under this Agreement, Montefiore shall notify Agency in writing of such incidents, errors, or events.
- 1.17 Agency Reports. Agency shall prepare periodic performance reports including a summary and required plans of action for each Contract Personnel, which shall include at a minimum: time to fill; turnover, including due to performance; audits of Contract Personnel files to confirm appropriate credentials, background reviews, and occupational health clearances are complete and up to date; satisfaction evaluations of the Agency by Contract Personnel including the onboarding process, and work environment; and provision of staff at the agreed upon rates.
- 1.18 Performance Improvement Metrics. Montefiore shall monitor the Services provided under this Agreement on the principles of risk reduction, safety, staff competence, and performance improvement that are applicable to this Agreement as required by TJC Standard LD 04.03.09. The monitoring strategy chosen by Montefiore shall be based on the patient population and the care, treatment, and services being provided. Montefiore may use, but not be limited to, any combination of the following performance criteria to evaluate the safety and quality of Services for consideration of areas of improvement or contract renewal:
- (a) An audit of documentation to ensure compliance with relevant TJC standards for care, treatment, and services with a focus on medical record documentation;
 - (b) Review of incident reports, near misses, or medication errors and risk management

- activities and corrective actions taken;
- (c) Review of compliance with infection control policies, procedures, and practices;
- (d) Review of input from Montefiore staff and patients regarding Services provided by Agency and Subcontractors;
- (e) Review of patient satisfaction surveys;
- (f) Direct observation of care provided;
- (g) Consultation with appropriate professional organizations for guidelines with respect to expectations for competence;
- (h) Timeliness of service and responsiveness to Montefiore and patient needs; and/or
- (i) Review of performance reports based on indicators which are applicable to this Agreement.

2. **Compensation and Payment.**

- 2.1 **Fees.** Montefiore shall pay Agency as specified in Appendix B attached to and made a part of this Agreement (the "Fee"). Agency shall provide Montefiore with the rebate set forth in Appendix B. Montefiore shall have no obligation to reimburse Agency for any expenses incurred by any Contract Personnel including recruitment fees, travel reimbursement fees, meals, or any incidental expense except as set forth in Appendix B. The Fees may only be modified in a writing signed by both parties. Fees may be changed on a case by case basis via email confirmation between authorized representatives the parties.
- 2.2 **Invoicing and Payment.** Unless otherwise provided in Appendix B, Agency shall invoice Montefiore on a weekly basis, and Montefiore shall pay Agency all undisputed amounts within forty-five (45) days of receipt of a complete invoice. Each invoice will list the name of each Contract Personnel placed at Montefiore, specify the Services performed, the location at which each Contract Personnel was placed, the days and total number of hours of service actually provided by each Contract Personnel, and such other information (if any) identified in Appendix B. Documentation of hours worked by Contract Personnel is evidenced by the time records contained in E-Z Time. Should Montefiore dispute any invoiced amount, Montefiore shall promptly notify Agency and pay Agency any undisputed portion of the invoice according to payment terms as stated herein. Montefiore and Agency shall work in good faith and shall resolve the disputed portion within 30 days from date of invoice.
- 2.3 **Examination.** During the Term and for four (4) years thereafter, Agency will maintain complete and accurate records on Contract Personnel performing the Services to substantiate its charges. Upon reasonable notice and at reasonable times, Montefiore and/or its representatives may examine Agency's books and records to assure Agency's compliance with this Agreement and the accuracy of its invoices. Should discrepancies be identified, Agency shall agree to rectify such issue within 30 days of receiving notice thereof, and a written plan to rectify issues will be required.

3. **Independent Contractor.**

- 3.1 **Not Montefiore Employees.** Agency's relationship with Montefiore shall be that of an independent contractor, and neither it nor any of its Contract Personnel will be an employee of Montefiore for any purpose whatsoever. Neither Agency nor any of its Contract Personnel shall be entitled to participate in any fringe benefits or privileges given or extended by Montefiore to its officers or employees, including medical benefits, retirement

plans, and paid sick leave or vacation time. Neither Agency nor its Contract Personnel shall have the right to bind Montefiore to any contract or obligation without Montefiore's prior written agreement or express authorization.

3.2 Taxes. Agency shall be solely responsible for the payment of any and all contributions, premiums, or fees, as the case may be, for federal, state, and local taxes (including payroll withholding and sales taxes), workers' compensation, unemployment coverage, disability insurance, Social Security, and any other legally required benefits for Agency and its Contract Personnel. At Montefiore's request, Agency shall provide to Montefiore evidence which Agency is able to legally provide that all of such payments have been timely made.

3.3 Compliance with Laws. The parties shall comply with all applicable federal, state, and local laws and regulations, including equal employment opportunity laws and laws relating to affirmative action, and shall not discriminate in employment practices or otherwise in the provision of the Services based on race, creed, color, gender, age, national origin, disability, legally defined handicap, veteran status, marital status, or sexual orientation.

4. **Confidential Information; HIPAA.**

4.1 Definition. "**Confidential Information**" includes Montefiore's proprietary and confidential business information, marketing plans, product plans, business strategies, financial information, forecasts, personnel information, customer lists, trade secrets, and any other nonpublic technical or business information, whether in writing or given to Agency orally, that is marked "confidential " (or words of similar import) or that under the circumstances should reasonably be deemed to be confidential. In addition, "Confidential Information" shall include patient information and patient records and any third-party proprietary and business information to which Agency may gain access as a result of its provision of the Services. Except with respect to patient information and patient records, which shall at all times be treated as Confidential Information, "Confidential Information" does not include information that: (a) was known to Agency without obligation of confidentiality, or was generally known to the public prior to its disclosure to Agency; or (b) subsequently becomes known to the public by some means other than a breach of this Agreement, including publication and/or laying open to inspection of any patent applications; or (c) is subsequently disclosed to Agency by a third party having a lawful right to make such disclosure without breach of this Agreement or otherwise in violation of Montefiore's rights.

4.2 Restrictions. Agency acknowledges that it has no ownership rights or other interests in any of the Confidential Information and that Agency will use such Confidential Information only to the extent necessary to perform its responsibilities to Montefiore under this Agreement. Without limiting the foregoing, Agency shall not: (a) use or disclose any Confidential Information for any purpose other than the performance of the Services, and will ensure that its Contract Personnel do not so use any Confidential Information or make any such disclosure(s); and (b) except as required in the performance of the Services, remove any Confidential Information from Montefiore's premises.

4.3 Government Order. The restrictions in this Section 4 shall not apply to the extent that Agency is required to comply with a subpoena or other order of a court of competent jurisdiction or duly authorized governmental agency; provided, however, that upon receipt of any such subpoena or order, Agency will promptly notify Montefiore (if permitted by law) and shall cooperate with Montefiore to seek a protective order or such other

confidentiality protection as Montefiore deems appropriate.

- 4.4 Return of Materials. Agency shall return all originals and copies (whether in hard copy, computer disk or tape, or any other form) of such Confidential Information to Montefiore promptly upon Montefiore's request.
- 4.5 HIPAA. The Parties acknowledge that in carrying out their obligations under this Agreement, Agency and its employees, agents, or representatives may have reason to access medical records and individually identifiable patient information maintained by Montefiore ("Patient Information"). Agency and Contract Personnel agree to comply with all applicable statutes, regulations, rules, ordinances, guidelines and directives of federal, state, and other governmental and regulatory bodies having jurisdiction over Agency that govern the privacy and confidentiality of the content of Patient Information, including the Health Insurance Portability and Accountability Act of 1996 and its accompanying regulations associated regulations codified at 45 C.F.R. parts 160- 164, including the "Privacy Rule" and the "Security Rule," and/or the Health Information Technology for Economic and Clinical Health Act and its associated regulations (as any of the foregoing may be amended from time to time, collectively, "**HIPAA**"), the Joint Commission on Accreditation of Healthcare Organizations ("JCAHO"), Occupational Safety and Health Administration ("OSHA"), and all laws of the State of New York. Upon request by Montefiore, Agency shall furnish Montefiore with proof of compliance with any such statute, regulation, rule, ordinance, guideline, or direction.
- 4.6 Montefiore and Agency will maintain the confidentiality of this Agreement. Montefiore also agrees and understands that it may have access to Contract Personnel's personally identifiable information ("PII") or personal health information ("PHI") pursuant to this Agreement. Montefiore agrees it will maintain the confidentiality of such PII or PHI using the same degree of care as Montefiore exercises with its own employees' PII or PHI, but in no event less than reasonable care. Montefiore also agrees to protect any Contract Personnel PII or PHI it receives pursuant to applicable law
5. Publicity. Agency will not originate or participate in any publicity, news release, social media post, or other public announcement, written or oral, relating to this Agreement or Agency's and Montefiore's relationship, without Montefiore's prior written consent. Agency shall not, and shall not permit any other person or entity to, use Montefiore's name or logo or the name or logo of any Montefiore affiliate (including the name of any division, unit, program, or facility of Montefiore or any of its affiliates) in any advertising, promotional, or sales literature, news release, or other publicity or for any other purpose without Montefiore's prior written approval.
6. Representations and Warranties; Indemnification.
 - 6.1 Representations and Warranties. Agency represents and warrants to Montefiore that: (a) none of Agency or its Personnel is subject to any restrictions with any previous or current employer, contracting party, or otherwise, which will be breached by its execution of this Agreement or performance of the Services; (b) Agency has, or by the time of commencement of the Services shall have, all licenses, certifications, registrations and permits required for Agency to perform under this Agreement including, but not limited to, licensure to do business in NYS and registration with the NYSDOH as a temporary health care services agency and Agency shall maintain such applicable licensure and registration throughout the Initial Term and any Renewal Term (as such terms are defined below in Section 10.1); and (c) Agency's performance of the Services and all actions taken

by Agency on behalf of Montefiore shall be in accordance with all applicable federal, state, and local laws, rules and regulations and Joint Commission standards. Agency further represents and warrants to Montefiore that (i) none of Agency nor any of its owners, officers, directors, Personnel, and/or any other person providing services under this Agreement on behalf of Agency is an individual or entity excluded from participation in any federal or state health care programs or debarred by the U.S. General Services Administration ("GSA") from any procurement or non-procurement programs or activities; and (ii) Agency will immediately notify Montefiore in writing if Agency or any of its owners, officers, directors, Personnel and/or any other person providing services under this Agreement becomes excluded from participation in any federal or state health care programs or debarred by the GSA during the term.

6.2 Indemnification.

- (a) By Agency for Employment Claims. Agency shall indemnify, defend, save and hold harmless Montefiore, its officers, directors, employees, independent contractors, attorneys and agents from any liability or damage or for any and all claims made against Montefiore or Agency and Montefiore jointly arising out of Agency's failure to fulfill its obligations under Sections 3.2 or 3.3 of this Agreement.
- (b) By Montefiore for Employment Claims. Montefiore shall indemnify, defend, save and hold harmless Agency, its officers, directors, employees, independent contractors, attorneys and agents from any liability or damage for any and all claims made against Agency or Agency and Montefiore jointly arising out of Montefiore's failure to fulfill its obligations under Section 3.3 of this Agreement.
- (c) Mutual. The parties shall indemnify, defend, save and hold harmless each other, their officers, directors, employees, independent contractors, attorneys and agents from any and all liability or damage which they may incur through the willful or negligent acts or omissions of their employees, contractors or agents.

- 7. To be indemnified, the party seeking indemnification must promptly notify the other party in writing of the claim (unless the other party already has notice of the claim); give the indemnifying party full and complete authority, information and assistance for the claim's defense and settlement; and not, by an act, admission or acknowledgement, materially prejudice the indemnifying party's ability to satisfactorily defend or settle the claim. . The indemnified party will have the right, at its option, to participate in the settlement or defense of the claim, with its own counsel and at its own expense. The indemnifying party will retain the control of the claim's settlement or defense at its own expense and with its own counsel, provided that any settlement or defense strategy does not involve monetary penalties, ongoing non-monetary obligations for the indemnified party, or any admission of liability or responsibility. Otherwise, any settlement will require the mutual agreement of both parties.
Limitation of Liability; Equitable Relief.

- 7.1 Exclusion of Damages. The limitations and exclusions in this Section 7.1 apply to all claims on whatever basis and under whatever theory brought, and irrespective of whether the party has been advised of the possibility of any such claim. Except for each party's indemnification obligations under Section 6.2, either party's gross negligence or willful misconduct, or a breach of HIPAA, IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR ANY INDIRECT,

INCIDENTAL, CONSEQUENTIAL, RELIANCE, OR PUNITIVE DAMAGES ,
LOST PROFITS, OR BUSINESS OPPORTUNITIES.

- 7.2 Equitable Relief. The parties acknowledge that other would be irreparably damaged if party receiving confidential information or any of its employees, contractors or agents breached its obligations with respect to intellectual property or Confidential Information of the party disclosing confidential information as set forth in Section 4, which damage cannot be adequately compensated for by an action at law. In the event of any such breach or threatened breach, in addition to all other remedies at law or in equity available to it, the disclosing party shall be entitled to seek equitable relief, including preliminary and permanent injunctions, without the necessity of posting bond or other security. Nothing in this Agreement shall be construed as prohibiting the disclosing party from pursuing any other remedies available to it at law, in equity, or under this Agreement, for any breach or threatened breach of this Agreement.

8. **Non-Solicitation.**

- 8.1 Agency. During the Term and for one (1) year following expiration or termination of this Agreement, Agency shall not, directly or indirectly, for or on behalf of itself or any other person or business, solicit, recruit, entice, or persuade any employee or contractor of Montefiore to leave the employ of or engagement by Montefiore or to be hired by or contract with Agency or any third party without Montefiore's prior written consent, provided that if a person's employment by or contract with Montefiore terminates before the termination or expiration of this Agreement, Agency may solicit, recruit, entice, persuade, hire, and/or contract with such person at any time after one (1) year from the date of such person's employment or contract termination.
- 8.2 Agency Employees or Contractors. In accordance with Article 29-K of the NYS Public Health Law, Agency shall not restrict the employment opportunities of any of the Contract Personnel. Agency shall not be entitled to the payment of liquidated damages, employment fees or other compensation from Montefiore should any Contract Personnel be hired as a permanent employee of Montefiore.
- 8.3 Limitations. The restrictions in this Section do not prohibit either party from hiring or retaining a person who: (a) submits an unsolicited application or (b) responds to a solicitation done by means of a general advertisement that is not directed to employees or contractors of the other party or any of its affiliate

9. **Insurance.** Prior to performing any Services, Agency shall obtain and maintain for such lengths of time as are necessary to cover any and all claims arising in connection with this Agreement and any acts or omissions of the Contract Personnel, at least the following insurance policies written by an insurance company retaining a rating of "A-," licensed by the State of New York, and otherwise acceptable to Montefiore:

- (i) Worker's compensation insurance and disability coverage in the statutory amount required under applicable law; with employers liability limits of no less than \$1,000,000. Waiver of subrogation shall be provided by the respective carriers with respect to all of the foregoing claims.
- (ii) Agency maintains an umbrella insurance policy for supplemental coverage up to \$7,000,000, which may apply to General Liability and Professional Liability coverages;

- (iii) Commercial general liability insurance written on an occurrence basis, having a combined single limit (including coverage for personal and bodily injury and death, property damage, products and completed operations, and contractual liability covering liabilities assumed by Agency under this Agreement) of at least \$5,000,000 per occurrence, and at least \$5,000,000 in the aggregate (inclusive of excess or umbrella coverage); such policy shall name Montefiore, its parent, subsidiaries and affiliates, including their directors, officers, employees, volunteers, and representatives, as additional insureds, on a primary and noncontributory basis, with full waiver of subrogation for liability, or alleged liability, arising out of the ongoing and/or completed operations of Agency.
- (iv) Comprehensive automobile liability insurance covering liability arising out of any auto, including owned, hired and non-owned vehicles) with minimum limits of at least \$1,000,000 per occurrence (inclusive of excess or umbrella coverage);
- (v) Professional liability with limits of \$2,300,000 per occurrence and \$6,900,000 in the aggregate, covering liability, or alleged liability, for bodily injury (including mental anguish/emotional distress), personal injury and property damage arising from the rendering of, or failure to render, professional medical or healthcare services including, without limitation, all medical or healthcare services rendered by Agency. Agency shall name Montefiore, its parent, subsidiary, and affiliated entities as additional insureds to the maximum extent that may be permitted by the policies containing said Professional Liability coverage.
- (vi) Cyber/Privacy insurance shall be procured with minimum limits of \$5,000,000 per claim and \$5,000,000 aggregate, extending Montefiore its parent, subsidiary, and affiliated entities as additional insureds to the maximum extent that may be permitted by the insurance policy; and covering losses arising from: (a) unauthorized use/access of computer systems (including mobile devices), servers, client's data or software; (b) defense of any regulatory action involving a breach of privacy; (c) failure to protect the confidential or proprietary information (personal and commercial information) from unauthorized disclosure or unauthorized access; (d) failure to adequately protect physical security of servers and systems including from cyberterrorism; (e) the costs for: notification, whether or not required by statute, credit file or identity monitoring, , public relations or legal experts; and (g) cyber extortion and cyber terrorism.
- (vii) Crime insurance shall be procured covering employee theft, disappearance and destruction, and property and products in Montefiore's custody or control, with minimum limits of \$1,000,000 per occurrence.

Each such insurance policy (except workers' compensation & crime) shall include Montefiore as an additional insured to the extent of Agency's indemnification obligations in this Agreement, and shall be primary to any insurance carried by Montefiore, except for instances where such claims are due solely to the negligent acts or omissions of Montefiore, its employees, contractors, agents or representatives. Such insurance policies shall be obtained and fully paid for by Agency, certificates evidencing such coverage shall be delivered to Montefiore within thirty (30) days of the execution of this Agreement, and a certificate of insurance documenting such policies shall be delivered to Montefiore upon request.

10. **Termination.**

- 10.1 Term. The initial term of this Agreement shall be for the period commencing on April 28, 2025 (the "Commencement Date") and terminating on April 27, 2026 (the "Initial Term"). Thereafter, this Agreement shall automatically renew for successive one (1) year terms on the anniversary of the Commencement Date (each a "Renewal Term"), unless terminated earlier as provided in this Agreement.
- 10.2 Termination for Breach. Either party may terminate this Agreement at any time upon notice to the other party if the other party materially breaches this Agreement and fails to cure such breach to the non-breaching party's reasonable satisfaction within thirty (30) days of the written notice describing such breach.
- 10.3 Immediate Termination. In addition, either party shall have the right to terminate this Agreement immediately upon notice if the other party: (a) becomes insolvent or proceedings are initiated by or against a party under any law relating to bankruptcy, insolvency, or the relief of debtors; (b) fails to have or loses any required license, registration, and/or certification; (c) does not have in force the insurance required by this Agreement; or (d) violates any applicable law or regulation.
- 10.4 Convenience. Either party may terminate this Agreement for any reason or no reason upon sixty (60) days' prior written notice to Agency.
11. **Miscellaneous.**
 - 11.1 Entire Agreement. All of the obligations and conditions of the parties are set forth in this Agreement (including Appendices A, B and C). This Agreement contains the entire understanding of the parties and supersedes any prior oral or written agreements.
 - 11.2 Amendment; Severability. No amendment or modification of this Agreement shall be valid, unless made in writing and signed by both parties. If any provision of this Agreement shall for any reason be held to be invalid or unenforceable, it shall be reformed to the minimum extent necessary to cause it to be valid and enforceable, if possible, and if not possible, it shall be deemed severed from this Agreement.
 - 11.3 Applicable Law. This Agreement shall be made in, and shall be interpreted according to, the laws of the State of New York, without regard to its conflict of laws principles. The parties agree to submit to the exclusive jurisdiction and venue of the federal and state courts serving New York, New York for the purpose of any actions or proceedings which may be required to enforce any of the provisions of this Agreement.
 - 11.4 Omnibus Reconciliation Act Compliance. Agency agrees that in accordance with Section 952 of the Omnibus Reconciliation Act of 1980 (as it may be amended, the "**Statute**"), Agency shall permit upon written request the Comptroller General of the U.S., the Secretary of Health and Human Services and their duly authorized representatives access to this Agreement and to Agency's books, documents, and records pertaining to this Agreement for four (4) years after the Services are furnished. Agency shall require the same of any organization(s) related to Agency having subcontracts with Agency that are subject to this Statute. For purposes of any audit conducted by Medicare, Agency shall retain all relevant records for six (6) years from expiration or termination of this Agreement.
 - 11.5 Regulatory Requirements. To the extent applicable, in accordance with Section 400.4 of

Title 10 (Health) of the Codes, Rules and Regulations of the State of New York ("Title 10"): (i) each of the parties shall comply with those provisions of Chapter V of Title 10 which are binding on that party under the laws of the State of New York; and (ii) "Notwithstanding any other provision in this agreement, MMC remains responsible for ensuring that any service provided pursuant to this agreement complies with all pertinent provisions of Federal, State and local statutes, rules and regulations." Notwithstanding the foregoing, the provisions of the preceding sentence are not intended to diminish in any respect Agency's obligations under this Agreement.

- 11.6 Document Audit. In the event that Agency's books, records, and/or operations are audited or subpoenaed or if Agency is notified of an intent to audit by any governmental agency that also has regulatory or other control over Montefiore, Agency shall promptly inform Montefiore of this fact and make such books and records available for inspection by Montefiore or its agents, as may be permitted by law, insofar as they pertain to Montefiore and/or this Agreement.
- 11.7 Notices. All notices required or permitted under this Agreement shall be in writing unless otherwise specified. Any written notice, amendment, or modification required or permitted hereunder shall be sent by certified mail, return receipt requested; or delivered personally; or sent by a nationally recognized overnight commercial courier to the party at the address set forth below. Any notice sent by mail shall be deemed received three (3) days after mailing. Any notice personally delivered shall be deemed received when delivered. Any notice sent by overnight courier service shall be deemed received one (1) business day after deposit with the overnight courier service.

If to Agency:

Fastaff, LLC
5700 S. Quebec Street, Suite 300
Greenwood Village, CO 80111
Attention: CFO
With copy to: Legal Department

If to Montefiore:

Montefiore Medical Center
111 East 210th Street
Bronx, NY 10467
Attention: Vice President, Supply Chain Services
With a copy to: Office of Legal Affairs

Any change in address will be provided to the other party by notice in accordance with the provisions of this Section.

- 11.8 Waiver. The waiver by either party of any breach of any provision of this Agreement, including any warranty or representation, shall not be construed as a waiver of any subsequent breach of the same or any other provision.
- 11.9 Assignment. This Agreement shall not be assignable by either party without the other party's prior written consent; provided, however that neither party shall not require the other party's consent to any assignment by operation of law or any assignment in connection with the merger, consolidation, or reorganization, or the sale of all or substantially all the assets or business of such party. Subject to the preceding sentence, this

Agreement shall inure to the benefit of and be binding upon Montefiore and Agency and their respective successors and permitted assigns.

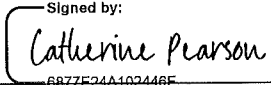
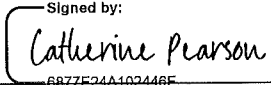
- 11.10 Construction. This Agreement (including the Appendices) is the result of arms' length negotiations between the parties. The language of all parts of this Agreement will in all cases be construed as a whole according to its fair meaning and not strictly for or against either party. All appendices, exhibits, schedules, and other attachments referred to in this Agreement or any appendix shall be incorporated by reference and made a part of this Agreement where referenced. For purposes of interpreting this Agreement: (a) the terms "including," "such as," and words of similar import mean "including without limitation"; and (b) headings are for convenience of reference only and do not define, limit, or affect the meaning or interpretation of this Agreement. Any conflict between a provision of an Appendix and this Agreement shall be resolved in favor of this Agreement unless the Agreement indicates otherwise (such as with respect to the BAA), or the Appendix states the parties' intention to supersede a specific provision of the Agreement.
- 11.11 Further Assurances. Each party shall take such actions and execute such documents as reasonably requested by the other party (and at the requesting party's expense) to effect the transactions and confirm the rights contemplated in this Agreement.
- 11.12 Survival. The following articles and sections shall survive expiration or termination of this Agreement: 3, 4, 5, 6, 7, 8, and 9.

IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be executed by their duly authorized representatives as of the Effective Date.

Montefiore Medical Center

AGENCY: Fastaff, LLC

By: 
Name: Philip D. Ozah, MD, PhD
Title: President & CEO

Signed by:

By: 
Name: Catherine Pearson
Title: President

Appendix A Screening Requirements

1. Pre-Screening - Agency will ensure that all workers maintain current credentialing, i.e., licensure / registration, BLS, ACLS, etc. (as applicable) and that they meet the criteria for the position(s) as indicated in the job descriptions.
2. Education & License Verification - Primary Source verification of highest level of education completed and education/certification required for the position, licensure and / or registration (including disciplinary check) will be verified by the agency to ensure current and in good standing status.
3. Application – Agency will ensure that an employment application is completed within the past year, requiring a professional resume including all current and previous employment and educational histories.
4. References – References will be completed on all agency workers; acceptable sources are Managers, Directors or individuals in a supervisory capacity. Peer references are not acceptable as sole sources of references.
5. All agency workers will be oriented on the following (as applicable) prior to start date:
 - Blood Bourne Pathogen Safety
 - Fire Safety
 - Float Policy/ Procedures
 - Hand Hygiene
 - HIPAA
 - HIV Confidentiality
 - Incident Occurrence / Occupational Exposure Reporting
 - Infection Control with certificate copy on file.
 - Multicultural / Spiritual Diversity & Sensitivity
 - OSHA
 - Patient Safety
 - Sexual Harassment
 - Montefiore Annual Clinical Review
6. Health Assessment/Physical- inclusive of documentation of the following:
 - Annual Assessment - within twelve months
 - Evidence of one of the following completed COVID vaccine series:
 - Moderna
 - Pfizer
 - Johnson & Johnson Janssen
 - Comirnaty Pfizer
 - AstraZeneca
 - Novavax
 - Sinopharm
 - Sinovac,
 - COVAXIN
 - Covovax
 - CanSino
 - Evidence of seasonal influenza vaccine
 - Documentation of immunizations or serologic documents for:
 - A. MMR (series of two):
 - Measles (Rubeola)
 - Mumps
 - Rubella (German Measles)
 - B. Varicella (series of two)
 - C. Hepatitis B (both surface antibody and surface antigen); (Hep B declination if vaccine declined)

- Evidence of two negative PPD's within 30 days of Start Date
 - Negative QuantiFERON (within a three (3) month period) accepted in lieu of PPD's
 - Chest X-Ray within a 12-month period if history of positive PPD or positive QuantiFERON
 - Proof of Tdap within 10 years (encouraged not required for clearance)
 - Color Blindness Screening (as applicable)
 - N95 Fit testing (as applicable) per Montefiore standards
7. Criminal background investigations:
- a. Will be conducted within 6 months of agency hire as long as the person has been on active assignment to determine if any agency worker has any felony or misdemeanor convictions within the county of residency and/or employment where the applicant has worked or lived in the past seven (7) years. Otherwise, background must be run immediately.
 - b. The status of pending (felony and misdemeanor) criminal charges will also be reviewed.
 - c. Agency workers will sign an attestation statement saying they have had no convictions since last background check was run. Information discovered during background check will be shared with client.
8. Additional Background
- a. Social Security Number Verification/Trace (used to assist with criminal background check)
 - b. Sex Offender check
 - c. Child Abuse Offender (as applicable)
 - d. Fingerprinting in compliance with laws, rules and regulations of the Department of Education ("DoE") and the Justice Center (as applicable)
 - e. OFAC (Office of Foreign Assets Control)/Terrorist Watch List check
 - f. OIG/EPLS/SAM/OMIG exclusion list check*(see #10 below)
9. Drug Testing: Drug screenings must follow Montefiore drug testing policy and are conducted by agency within 6 months of agency hire if the person has remained on active duty. Otherwise, must be repeated prior to assignment with Montefiore. Drug screenings are obtained and include the following:
- AMPHETAMINES
 - BARBITURATES
 - BENZODIAPENES
 - COCAINE METABOLITES
 - METHADONE
 - METHAQUALONE
 - MDA-ANALOGUES
 - OPIATES
 - PHENYLCYCLIDINE
 - PROPOXYPHENE
 - 6-ACETYLMORPHINE
 - OPIATES (SEMI-SYNTHETIC)
 - OXYCODONES 100 ng/mL
 - PHENCYCLIDINE 25 ng/mL 25 ng/mL MS
 - PROPOXYPHENE 300 ng/mL 200 ng/mL MS
10. *Ineligibility – Agency will promptly disclose to Montefiore any debarment, exclusion or suspension that makes the agency worker ineligible for participation in a federally funded healthcare program. Ineligible Person can be found on the System for Award Management (SAM) (<http://www.sam.gov>) and the Office of Inspector General OIG List of Excluded Individuals/ Entities (<http://exclusions.oig.hhs.gov>), OMIG (Office of Medicaid Inspector General), EPLS (Excluded Parties List System). Such searches shall be conducted prior to the start of assignment for every agency worker.

11. OSHA – training on blood-borne pathogens and FIT testing in accordance with Montefiore standards will be completed for every agency worker prior to assignment (as applicable). Specialty certifications required will be dictated by the job description(s) but all nurses will need BLS and those working in the ED, Critical Care need ACLS and if Pediatric Critical Care or ED, will also need PALS.

Appendix B
Contract Personnel Rate Sheet

Category	Specialty RN	Hourly Base Bill Rate
I	Med Surg / Office RN	95
	Tele	97
	Dialysis	97
	Psych	97
	Case Manager	95
II	Wound Care/Burn	101
	Stepdown/PCU	101
	Peds (CHAM6)/PEDS	107
	ENDO	101
III	OR	112
	Oncology	112
IV	ICU	101
	CVICU / CSICU	110
	CCU	105
	CVOR	112
	MICU	101
	NICU	108
	PACU	107
	PCCU	115
	PEDS	107
	PICU / Peds CVICU	115
	ER	101
	Tele	97
	Postpartum	105
	L&D	110
	Infection Control	107
	Cath / EP RN	125
	IR- interventional radiology	120
	PEDS ER	112
	GI	112
	Radiology RN	120
	Stress Lab RN	120
	ORT	82
	Sterile Processing Tech	54
	House Supervisor	112
	Psych Tech	72
	EP Tech	128
	Cath Tech	120

	EP or Cath Trainer/Interim Lead	147
	Respiratory Tech	90
	IR Tech /Rad Tech/CT Tech	120
	General X Ray	110
	MRI Tech /Ultrasound Tech	120
	Nuc Med Tech	128
	Echo Tech	115
	Vascular Echo Tech	120
	Radiation Therapist	120
	Cardiac CT	128
	PET Tech	128
	LPN	80
	Midwife	125
	Nurse Aide/PCT	62
	Psych Tech/Dialysis Tech/Pharmacy Tech	72
	LMSW	95
	LCSW	110
	Pharmacist	140
	Home Health/Hospice RN	105
	NP	215
	PA	215

Other:				
	On Call Rate:	25% of the straight time rate		
	Call Back (Min. 2 hours)/Overtime/Holiday:	1.2 times the hourly bill rate over 40 hours per workweek.		
	Shift Differential (eve):	N/A		
	Charge Nurse:	N/A		
	Orientation:	\$10 less per hour than the straight time rate		

Holidays

Holiday rates shall be applicable on the following holidays only:

- (1) New Year Day
- (2) Christmas Day
- (3) Thanksgiving Day
- (4) Memorial Day
- (5) July 4th
- (6) Labor Day

Rebates

Agency shall provide a rebate to Montefiore based upon the total number of hours worked by Contract Personnel per week. The thresholds are provided below

<u>Hours per Week</u>	<u>Rebate</u>
0-2500	\$1.00 per hour
2501-3500	\$1.35 per hour
3501-4500	\$2.00 per hour
4501 -7,000	\$2.75 per hour
7,001-9,000	\$3.00 per hour
9,001+	\$3.15 per hour

The rebates set forth above are applied to each rate category individually and are not cumulative. Rebates shall be calculated weekly and paid on a quarterly basis.

Appendix C

Montefiore Locations

Children's Hospital at
Montefiore (CHAM)
3415 Bainbridge
Avenue
Bronx, NY 10467

Montefiore Medical
Center (Moses
Campus) 111 East
210th Street
Bronx, NY 10467

Montefiore Medical Center
(Wakefield Campus) 600
East 23rd Street
Bronx, NY 10466

Montefiore Medical Center-
Jack D. Weiler Hospital
(Weiler campus) 1825
Eastchester Road
Bronx, NY 10461

Montefiore Westchester Square
2475 St. Raymond Avenue,
Bronx, NY 10461

Montefiore Medical Center
(Hutch Campus)
1250 Waters Place
Bronx, NY 10461

Montefiore Medical Group (MMG)
List of locations to be provided in separate writing.

Additional Montefiore locations may be added as agreed upon by the parties in writing.